

HOUSE No. 3582

The Commonwealth of Massachusetts

PRESENTED BY:

Bud L. Williams

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to put a moratorium on new gas system expansion.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Bud L. Williams</i>	<i>11th Hampden</i>	<i>1/6/2025</i>

HOUSE No. 3582

By Representative Williams of Springfield, a petition (accompanied by bill, House, No. 3582) of Bud L. Williams for legislation to establish a moratorium on new gas system expansion. Telecommunications, Utilities and Energy.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 3238 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to put a moratorium on new gas system expansion.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 1 adds a definition of a combustible fuel facility.

2 SECTION 1: Section 1 of the General Laws, as appearing in the 2022 Official Edition, is
3 amended by inserting the following definition: -

4 “Combustible fuel facilities”, infrastructure involving the processing, storage,
5 transmission, or distribution of combustible fuel sources, including but not limited to oil, natural
6 gas, renewable natural gas, and hydrogen.

7 Section 2 prohibits EFSB from granting approval of construction to combustible fuel
8 facilities, except that which is required for the safety of the public.

SECTION 2: Section 69J of said chapter 164, as so appearing, is hereby further amended by inserting, at the end thereof the following: -

No new combustible fuel facility shall be approved, and no expansion of an existing combustible fuel facility shall be approved unless required for the safety of the public, until 2026 at the earliest.

Section 3 prohibits EFSB from granting certificates to petitions for environmental impact and public interest to new combustible fuel facilities, except that which is required for the safety of the public.

SECTION 3: Section 69K of said chapter 164, as so appearing, is hereby amended by inserting, at the end thereof the following: -

No new combustible fuel facility shall be granted a petition for a certificate, and no expansion of an existing combustible fuel facility shall be granted a petition for a certificate unless required for the safety of the public until 2026 at the earliest.

Section 4 removes the DPU's power to approve a gas company's expansion anywhere in the Commonwealth beyond the town named in its agreement of association or charter.

SECTION 4: Section 30 of said chapter 164, as so appearing, is amended by striking out, in line 1 the words "a gas or" and inserting in place thereof the following word: -"an".

Section 5 prohibits gas service expansion into towns without pre-existing gas service.

SECTION 5: Said chapter 164, as so appearing, is hereby further amended by inserting after section 86 the following section:-

29 Section 86A. A town where no gas company exists in active operation, or where no
30 person owns or operates the manufacture and sale of gas, no gas company, nor any other person,
31 shall dig up and open the streets, lanes, and highways of such town in order to construct a
32 combustible fuel facility.